



Bill Number: S.B. 1535

Bravo Floor Amendment

Reference to: JUDICIARY & ELECTIONS

Committee Amendment

Amendment drafted by: Zack Dean

FLOOR AMENDMENT EXPLANATION

1. Specifies that a victim of sex trafficking who is convicted of prostitution and whose conviction is subsequently vacated is eligible to petition the court to seal the person's case records immediately following the completion of all nonmonetary terms and conditions of the person's sentence.
2. Requires the court to seal all records relating to the arrest, conviction and sentence of a person who is convicted of prostitution as a result of being a victim of sex trafficking and whose conviction is vacated by the court.
3. Excludes the sealed records of a sex trafficking victim from being used in any subsequent matter or future prosecution.

BRAVO FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1535
(Reference to JUDICIARY AND ELECTIONS Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 12, chapter 1, article 1, Arizona Revised
3 Statutes, is amended by adding section 12-116.13, to read:

4 12-116.13. Assessment; anti-human trafficking grant fund

5 A. IN ADDITION TO ANY OTHER ASSESSMENT, IF A PERSON IS CONVICTED OF
6 A VIOLATION OF SECTION 13-3214, SUBSECTION A, PARAGRAPH 2, THE COURT SHALL
7 ORDER THE PERSON TO PAY AN ASSESSMENT OF \$200. THE ASSESSMENT SHALL NOT
8 BE WAIVED AND IS NOT SUBJECT TO A SURCHARGE.

9 B. THE COURT SHALL TRANSMIT THE ASSESSMENTS COLLECTED PURSUANT TO
10 THIS SECTION TO THE COUNTY TREASURER.

11 C. THE COUNTY TREASURER SHALL TRANSMIT THE ASSESSMENTS TO THE STATE
12 TREASURER. THE STATE TREASURER SHALL DEPOSIT THE ASSESSMENTS IN THE
13 ANTI-HUMAN TRAFFICKING GRANT FUND ESTABLISHED BY SECTION 41-1736.

14 <<Sec. 2. Section 13-909, Arizona Revised Statutes, is amended to
15 read:

16 13-909. Vacating the conviction of a sex trafficking victim;
17 requirements

1 A. A person who was convicted of a violation of section 13-3214 or
2 a city or town ordinance that has the same or substantially similar
3 elements as section 13-3214 may apply to the court that pronounced
4 sentence to vacate the person's conviction. The court shall grant the
5 application and vacate the conviction if the court finds by clear and
6 convincing evidence that the person's participation in the offense was a
7 direct result of being a victim of sex trafficking pursuant to section
8 13-1307 or 13-3212.

9 B. If the prosecutor does not oppose the application, the court may
10 grant the application and vacate the conviction without a hearing.

11 C. If the prosecutor opposes the application, the court shall hold
12 a hearing on the application.

13 D. On vacating the conviction, the court shall:

14 1. Release the applicant from all penalties and disabilities
15 resulting from the conviction.

16 2. Enter an order {{SEALING ALL RECORDS THAT RELATE TO THE
17 APPLICANT'S ARREST, CONVICTION AND SENTENCE AND}} that a notation be made
18 in the court file and in law enforcement and prosecution records that the
19 conviction has been vacated and the person was the victim of a crime.

20 3. Transmit the order vacating the conviction to the arresting
21 agency, the prosecutor and the department of public safety.

22 E. A conviction vacated pursuant to this section does not qualify
23 as a historical prior felony conviction and cannot be alleged for any
24 purpose pursuant to section 13-703 or 13-707.

25 F. Except on an application for employment that requires a
26 fingerprint clearance card pursuant to title 41, chapter 12, article 3.1,
27 a person whose conviction is vacated under this section may in all
28 instances state that the person has never been arrested for, charged with
29 or convicted of the crime that is the subject of the conviction, including
30 in response to questions on employment, housing, financial aid or loan
31 applications. >>

32 <<Sec. 3. Section 13-911, Arizona Revised Statutes, is amended to
33 read:

34 13-911. Sealing of arrest, conviction and sentencing records;
35 requirements; fee; appeal; definition

36 A. A person may file a petition to seal all case records related to
37 a criminal offense if the person was:

38 1. Convicted of a criminal offense and has completed all of the
39 terms and conditions of the sentence that was imposed by the court,
40 including the payment of all monetary obligations and restitution to all
41 victims.

42 2. Charged with a criminal offense and the charge was subsequently
43 dismissed or resulted in a not guilty verdict at a trial.

44 3. Arrested for a criminal offense and no charges were filed.

45 B. All case records{{, EXCEPT THOSE VACATED PURSUANT TO SECTION 13-
46 909,}} that are sealed pursuant to this section may be:

47 1. Alleged as an element of an offense.

48 2. Used as a historical prior felony conviction.

49 3. Admissible for impeaching any party or witness in a subsequent
50 trial.

51 4. Used to enhance the sentence for a subsequent felony.

1 5. Used to enhance the sentence pursuant to sections 28-1381 and
2 28-1382.

3 6. Pleaded and proved in any subsequent prosecution of the person
4 by this state or a political subdivision of this state.

5 7. Used as a conviction if the conviction would be admissible if
6 the conviction was not sealed.

7 C. The person shall file a petition to seal all case records in one
8 of the following:

9 1. The court in which the person was convicted of an offense.

10 2. The court in which an indictment, information, criminal citation
11 or complaint against the person was filed and the charges were dismissed,
12 the person was found not guilty or the person's conviction was vacated,
13 except that if the complaint was filed in a justice court and a subsequent
14 information was filed, the petition must be filed in the superior court.

15 3. The court in which the person had an initial appearance if
16 charges were not filed.

17 4. The superior court in the county where a person was arrested if
18 the person did not have an initial appearance and no charges were filed.

19 D. The court may not grant or deny a petition to seal a person's
20 case records until sixty calendar days after the court receives the
21 petition unless the court receives notice that both the prosecutor and all
22 victims who have made a request for postconviction notice do not object to
23 the petition. Unless the petitioner, prosecutor or victim requests a
24 hearing, the court may grant or deny a petition to seal case records
25 without a hearing. The court may dismiss a petition that does not meet
26 the requirements prescribed in this section without a hearing. The court
27 shall grant the petition if the court determines that granting the
28 petition is in the best interests of the petitioner and the public's
29 safety. The clerk of the court shall provide a copy of the petition to
30 seal case records to the prosecutor. The prosecutor may respond to the
31 petition and request a hearing. The victim has a right to be present and
32 heard at any proceeding in which the defendant has filed a petition to
33 seal case records. If the victim has made a request for postconviction
34 notice, the prosecutor shall provide the victim with notice of the
35 defendant's petition and of the victim's rights under this section.

36 E. At the time of sentencing, the court shall inform the person on
37 the record that the person may be eligible to petition the court for an
38 order that seals all case records of the person's arrest, conviction and
39 sentence that are related to the offense pursuant to this section and
40 shall provide this notice in writing. A person who was convicted of any
41 eligible offense may petition the court to seal the person's records of
42 arrest, conviction and sentence after the person completes all of the
43 nonmonetary terms and conditions of the person's sentence ordered by the
44 court, and the following period of time has passed since the person
45 completed the nonmonetary conditions of probation or sentence and was
46 discharged by the court:

47 1. Ten years for a class 2 or 3 felony.

48 2. Five years for a class 4, 5 or 6 felony.

49 3. Three years for a class 1 misdemeanor.

50 4. Two years for a class 2 or 3 misdemeanor.

1 {{5. IMMEDIATELY FOR AN OFFENSE VACATED PURSUANT TO SECTION 13-
2 909.}}

3 F. A person whose case records have been sealed pursuant to
4 subsection E of this section and who commits a subsequent felony offense
5 may petition the court pursuant to subsection E of this section to seal
6 the person's records of arrest, conviction and sentence relating to the
7 subsequent felony offense after the applicable period of time prescribed
8 in subsection E of this section for the subsequent felony offense has
9 expired and an additional five years have passed.

10 G. A petitioner is required to have paid all fines, fees and
11 restitution ordered by the court at the time of filing the petition to be
12 eligible to seal case records pursuant to this section.

13 H. After a petition to seal case records is filed, the court shall
14 notify the department of public safety and request the department to
15 prepare and submit a report to the court that includes all of the
16 petitioner's state and federal arrests, prosecutions and convictions and
17 any other information that the court requests or that the department
18 believes will assist the court in making its determination. The director
19 may charge the petitioner a fee that is determined by the director for the
20 investigation unless the petitioner is indigent or has been found not
21 guilty or the case was dismissed or not prosecuted and the petition is
22 filed pursuant to subsection C, paragraph 2 or 3 of this section.

23 I. If the court grants a petition to seal case records:

24 1. The court shall issue an order sealing all records relating to
25 the petitioner's arrest, conviction and sentence and directing the clerk
26 of the court to notify the department of public safety and the prosecutor
27 of the sealing order.

28 2. On order of a court, the clerk of the court shall seal all case
29 records relating to the petitioner's arrest, conviction and sentence. A
30 court order to seal case records pursuant to this section is subject only
31 to the disclosure requirements in this section and shall be treated
32 differently than a record that is sealed pursuant to any other statute or
33 court rule. The clerk shall create and manage a system for sealing case
34 records pursuant to this section and for providing sealed case records to
35 an entity or person that is listed in subsection J of this section and
36 that requests the record. On the request of an entity or person listed in
37 subsection J of this section, the clerk shall provide the entity or person
38 with any sealed case records. The clerk may not provide sealed case
39 records pursuant to this section to any person or entity that is not
40 listed in subsection J of this section.

41 3. The department of public safety shall designate the case records
42 as sealed within the department's records and inform all appropriate state
43 and federal law enforcement agencies of the sealing. The department may
44 not share or provide sealed case records with any person or entity or for
45 any purpose that is not listed in subsections B and J of this section.
46 The department may charge the successful petitioner a fee determined by
47 the director to research and correct the petitioner's criminal history
48 record unless the petitioner is indigent or has been found not guilty or
49 the case has been dismissed or not prosecuted and the petition is filed
50 pursuant to subsection C, paragraph 2 or 3 of this section.

1 4. The arresting and prosecuting agencies shall clearly identify in
2 each agency's files and electronic records that the petitioner's arrest or
3 conviction and sentence records are sealed.

4 5. A person whose records are sealed pursuant to this section may
5 state, in all instances, that the person has never been arrested for,
6 charged with or convicted of the crime that is the subject of the arrest
7 or conviction, including in response to questions on employment, housing,
8 financial aid or loan applications unless any of the following applies:

9 (a) The person is submitting an application that requires a
10 fingerprint clearance card pursuant to title 41, chapter 12, article 3.1.

11 (b) The sealed case records involved a class 2 or class 3 felony
12 violation of chapter 34 of this title.

13 (c) The sealed case records involved burglary under section
14 13-1506, 13-1507 or 13-1508, theft under section 13-1802 or organized
15 retail theft under section 13-1819 from a residential or nonresidential
16 structure and the person is applying for a job that requires entering into
17 and performing services inside of a residential structure.

18 (d) The sealed case records involved child abuse under section
19 13-3623 or aggravated assault under section 13-1204 and the person is
20 applying for a job involving supervising, educating or administering care
21 to a minor.

22 (e) The sealed case records involved vulnerable adult abuse under
23 section 13-3623 and the person is applying for a job involving supervising
24 or administering care to a vulnerable adult or a person who is at least
25 sixty-five years of age.

26 (f) The sealed case records involved a violation of section
27 5-395.01, 5-396, 5-397, 13-1814, 28-1381, 28-1382, 28-1383, 28-8282,
28 28-8284, 28-8286, 28-8287 or 28-8288 and the person is applying for a job
29 involving the commercial or private operation of a motor vehicle, boat or
30 airplane.

31 (g) The sealed case records involved a violation of chapter 18, 19,
32 20, 21, 22 or 23 of this title or telecommunication fraud under section
33 13-3707 and the person is applying for a job involving accounting,
34 overseeing, transporting, handling or managing another person's money or
35 financial assets.

36 (h) The person is applying for a position with a law enforcement
37 agency, a prosecutor's office, a court, a probation department, a child
38 welfare agency as defined in section 8-501, the department of child
39 safety, the department of juvenile corrections or the state department of
40 corrections.

41 (i) The person is undergoing a background check for the placement
42 with that person of a child who is in the custody of the department of
43 child safety.

44 (j) The disclosure is required by a state or federal law.

45 (k) The disclosure is required to comply with program integrity
46 provisions of medicare, medicaid or any other federal health care program.

47 6. The person's employer is not liable for hiring or contracting
48 with the person as prescribed in section 12-558.03.

49 J. If the person's case records are sealed pursuant to this
50 section, the records shall be made available for the purposes listed in
51 subsection B of this section and to the following:

1 1. The person whose records are sealed and any attorney who has
2 filed a notice of appearance on behalf of the person whose records are
3 sealed.

4 2. The victim in the case if the victim has exercised victims'
5 rights pursuant to section 13-4414.

6 3. Any of the following if the purpose relates to the operation of
7 the requesting party's official duties or internal hiring practices, or
8 both:

9 (a) A law enforcement agency.

10 (b) A prosecuting agency. On request of a person who is charged
11 with a criminal offense or that person's attorney of record, a prosecuting
12 agency shall provide the sealed case records of any person whom the
13 prosecuting agency intends to call as a witness in that person's
14 prosecution.

15 (c) A probation department or any agency that is responsible for
16 the preparation of a presentence report.

17 (d) A court.

18 (e) The department of child safety or a child welfare agency as
19 defined in section 8-501.

20 (f) The department of juvenile corrections.

21 (g) The state department of corrections or any other correctional
22 facility in this state.

23 (h) The clerk of the court or any department that is responsible
24 for maintaining court records.

25 K. This section does not require the supreme court or the court of
26 appeals to seal any record.

27 L. If the court denies a petition to seal case records, a person
28 may not file a new petition until three years after the date of the
29 denial.

30 M. A conviction for an offense that is committed in another
31 jurisdiction and that if committed in this state would not constitute an
32 offense in this state may not be used against the petitioner or prohibit
33 the petitioner from having a record sealed. For the purposes of this
34 section, the classification of an offense committed in another
35 jurisdiction has the classification that the offense would have if
36 committed in this state.

37 N. If the petitioner has a charge pending or is charged with an
38 offense after filing a petition to seal case records pursuant to
39 subsection C, paragraph 3 or 4 of this section and the charge could result
40 in a conviction that cannot be sealed or that could extend the time to
41 file a petition to seal case records, the court may not grant or deny the
42 petition until the court disposes of that charge.

43 O. The following offenses are not eligible to be sealed pursuant to
44 this section:

45 1. A dangerous offense as defined in section 13-105.

46 2. A dangerous crime against children as defined in section 13-705.

47 3. A serious offense or violent or aggravated felony as defined in
48 section 13-706.

49 4. Any offense that has either of the following as an element of
50 the offense:

1 (a) The discharge, use or threatening exhibition of a deadly weapon
2 or dangerous instrument.

3 (b) The knowing infliction of serious physical injury on another
4 person.

5 5. Sex trafficking pursuant to section 13-1307.

6 6. A class 2, 3, 4 or 5 felony offense that is included in chapter
7 14 or 35.1 of this title.

8 P. This section does not affect any of the following:

9 1. The right of the person whose case records are sealed to appeal
10 the conviction or sentence or to rely on it in bar of any subsequent
11 proceeding for the same offense.

12 2. The right of a law enforcement agency to maintain an arrest and
13 conviction record and to communicate information regarding the sealed
14 record of arrest or conviction to prosecuting agencies, courts, probation
15 departments and other law enforcement agencies for a purpose listed in
16 subsection J of this section or in defense of a civil action that arises
17 out of the facts of the arrest or to the Arizona peace officer standards
18 and training board solely to assist the board in determining the fitness
19 of a person to serve as a peace officer, except that in any of these cases
20 the information may not be disclosed to any person or entity that is not
21 listed in subsection J of this section.

22 3. The department of public safety or the board of fingerprinting
23 from considering a conviction that is sealed pursuant to this section when
24 evaluating an application for a fingerprint clearance card pursuant to
25 section 41-1758.03 or 41-1758.07, except that the board of fingerprinting
26 shall consider sealed case records as a mitigating circumstance in
27 determining whether to grant a good cause exception pursuant to section
28 41-619.55.

29 4. A court from issuing a lifetime injunction pursuant to section
30 13-719 or the validity of a lifetime injunction that was issued pursuant
31 to section 13-719.

32 Q. For the purposes of this section, "case records" means all
33 records that pertain to a person's arrest, conviction and sentence for a
34 particular offense and that may be sealed pursuant to this section. >>

35 Sec. 4. Section 13-3214, Arizona Revised Statutes, is amended to
36 read:

37 13-3214. Prostitution; classification

38 A. It is unlawful for a person to knowingly:

39 1. [Engage in prostitution OR AGREE OR OFFER TO ENGAGE IN SEXUAL
40 CONDUCT UNDER A FEE ARRANGEMENT WITH ANY PERSON FOR MONEY OR OTHER
41 VALUABLE CONSIDERATION] [OFFER TO RECEIVE, AGREE TO RECEIVE OR RECEIVE A
42 MONETARY FEE OR OTHER VALUABLE CONSIDERATION FOR ENGAGING IN SEXUAL
43 CONDUCT WITH ANOTHER PERSON].

44 2. [PAY FOR OR AGREE OR OFFER TO PAY FOR SEXUAL CONDUCT UNDER A FEE
45 ARRANGEMENT WITH ANY PERSON FOR MONEY OR ANY OTHER VALUABLE CONSIDERATION]
46 [OFFER TO PAY, AGREE TO PAY OR PAY A MONETARY FEE OR VALUABLE
47 CONSIDERATION FOR ENGAGING IN SEXUAL CONDUCT WITH ANOTHER PERSON].

48 B. This section does not prohibit cities or towns from enacting and
49 enforcing ordinances to suppress and prohibit prostitution that provide a
50 punishment for misdemeanor violations that is at least as stringent as
51 provided in this section.

1 C. For the purposes of sentencing under this section, a previous
2 violation of any city or town ordinance that prohibits prostitution and
3 that has the same or substantially similar elements as this section shall
4 be deemed to be a previous violation of this section.

5 D. It is an affirmative defense to a prosecution under this section
6 that the defendant committed the acts constituting ~~[prostitution]~~ [A
7 VIOLATION OF SUBSECTION A, PARAGRAPH 1 OF THIS SECTION] as a direct result
8 of being a victim of sex trafficking.

9 E. A person who violates SUBSECTION A, PARAGRAPH 1 OF this section
10 is guilty of a class 1 misdemeanor, except that:

11 1. A person who is convicted of a first violation of this section
12 shall be sentenced to serve not less than fifteen consecutive days in jail
13 and is not eligible for probation or suspension of execution of sentence
14 until the entire sentence is served.

15 2. A person who is convicted of a second violation of this section
16 shall be sentenced to serve not less than thirty consecutive days in jail
17 and is not eligible for probation or suspension of execution of sentence
18 until the entire sentence is served.

19 3. A person who is convicted of a third violation of this section
20 shall be sentenced to serve not less than sixty consecutive days in jail,
21 is not eligible for probation or suspension of execution of sentence until
22 the entire sentence is served and shall complete an appropriate ~~court~~
23 ~~ordered~~ COURT-ORDERED education or treatment program.

24 4. A person who has previously been convicted of three or more
25 violations of this section and who commits a subsequent violation of this
26 section is guilty of a class 5 felony, shall be sentenced to serve not
27 less than one hundred eighty consecutive days in jail and is not eligible
28 for probation or suspension of execution of sentence until the entire
29 sentence is served. This paragraph does not prohibit a person from being
30 sentenced to serve a period of incarceration in the state department of
31 corrections.

32 F. A PERSON WHO VIOLATES SUBSECTION A, PARAGRAPH 2 OF THIS SECTION
33 IS GUILTY OF A CLASS 6 FELONY, EXCEPT THAT:

34 1. A PERSON WHO IS CONVICTED OF A FIRST VIOLATION OF THIS SECTION
35 SHALL BE SENTENCED TO SERVE NOT LESS THAN FIFTEEN CONSECUTIVE DAYS IN JAIL
36 AND IS NOT ELIGIBLE FOR PROBATION OR SUSPENSION OF EXECUTION OF SENTENCE
37 UNTIL THE ENTIRE SENTENCE IS SERVED.

38 2. A PERSON WHO IS CONVICTED OF A SECOND VIOLATION OF THIS SECTION
39 SHALL BE SENTENCED TO SERVE NOT LESS THAN THIRTY CONSECUTIVE DAYS IN JAIL
40 AND IS NOT ELIGIBLE FOR PROBATION OR SUSPENSION OF EXECUTION OF SENTENCE
41 UNTIL THE ENTIRE SENTENCE IS SERVED.

42 3. A PERSON WHO IS CONVICTED OF A THIRD VIOLATION OF THIS SECTION
43 SHALL BE SENTENCED TO SERVE NOT LESS THAN SIXTY CONSECUTIVE DAYS IN JAIL,
44 IS NOT ELIGIBLE FOR PROBATION OR SUSPENSION OF EXECUTION OF SENTENCE UNTIL
45 THE ENTIRE SENTENCE IS SERVED AND SHALL COMPLETE AN APPROPRIATE
46 COURT-ORDERED EDUCATION OR TREATMENT PROGRAM.

47 4. A PERSON WHO HAS PREVIOUSLY BEEN CONVICTED OF THREE OR MORE
48 VIOLATIONS OF THIS SECTION AND WHO COMMITS A SUBSEQUENT VIOLATION OF THIS
49 SECTION IS GUILTY OF A CLASS 4 FELONY, SHALL BE SENTENCED TO SERVE NOT
50 LESS THAN ONE HUNDRED EIGHTY CONSECUTIVE DAYS IN JAIL AND IS NOT ELIGIBLE
51 FOR PROBATION OR SUSPENSION OF EXECUTION OF SENTENCE UNTIL THE ENTIRE

1 SENTENCE IS SERVED. THIS PARAGRAPH DOES NOT PROHIBIT A PERSON FROM BEING
2 SENTENCED TO SERVE A PERIOD OF INCARCERATION IN THE STATE DEPARTMENT OF
3 CORRECTIONS.

4 Sec. 5. Section 41-1736, Arizona Revised Statutes, is amended to
5 read:

6 41-1736. Anti-human trafficking grant fund

7 [A.] The anti-human trafficking grant fund is established
8 consisting of monies COLLECTED PURSUANT TO SECTION 12-116.13 AND MONIES
9 appropriated by the legislature. Monies in the fund are continuously
10 appropriated. The department shall administer the fund and distribute
11 monies from the fund to programs to reduce human trafficking in this
12 state. To be eligible for grant monies, an anti-human trafficking program
13 shall do ~~either~~ ONE of the following:

14 1. Work to reduce human trafficking by providing assistance and
15 analytical services to law enforcement agencies.

16 2. Provide services to victims OF HUMAN TRAFFICKING. ~~and~~

17 3. PROVIDE training to law enforcement agencies, prosecutorial
18 agencies and the public on preventing and identifying human trafficking.

19 [B. NOTWITHSTANDING SUBSECTION A OF THIS SECTION, MONIES COLLECTED
20 PURSUANT TO SECTION 12-116.13 FROM A PERSON WHO IS CONVICTED OF A
21 VIOLATION OF SECTION 13-3214, SUBSECTION A, PARAGRAPH 2 SHALL BE USED
22 EXCLUSIVELY TO PROVIDE SERVICES TO VICTIMS OF SEX TRAFFICKING.]

23 Enroll and engross to conform

24 Amend title to conform

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